

July 10, 2026
Dept. 9
Civil Tentative Rulings

8.	25CV3065	AMERICAN EXPRESS NATIONAL BANK VS. MATTHEW OHANELE
MOTION HEARING/SET ASIDE DEFAULT JUDGMENT		

A Judgment by Default was entered on April 16, 2026, which ordered Defendant to pay \$5,617.05 in damages and \$297.61 in costs to Plaintiff.

On April 27, 2026, Defendant filed a Notice of Motion and Motion to Set Aside Default and Default Judgment, If Entered; Points and Authorities; Declaration. Defendant seeks relief pursuant to Code of Civil Procedure § 473(b) based upon inadvertence, surprise, or excusable neglect. Defendant argues that he was not properly served with the Summons and Complaint, nor did he receive notice of the court proceedings prior to entry of default. He contends that when the case was filed, he was traveling outside of the United States and did not receive any notice prior to entry of judgment.

On June 18, 2026, Plaintiff filed a Declaration of Plaintiff's Counsel in Opposition to Motion to Set Aside Default and Default Judgment and Memorandum of Points and Authorities in Opposition to Motion to Set Aside Default and Default Judgment. Plaintiff asserts that service of the Summons, Complaint, and Civil Case Cover Sheet were properly served via substituted service on December 2, 2025 and thereafter copies were mailed to Defendant. The Declaration of Diligence provides two attempts of personal service were made on November 26, 2026, and November 29, 2025. On December 2, 2025, Sandra Ohanele, who identified themselves as Defendant's spouse, stated Defendant resided in the home but was not available at the time. Ms. Ohanele accepted service with direct delivery.

Code of Civil Procedure § 473(b) permits a court to relieve a party from a judgment through the party's mistake, inadvertence, surprise, or excusable neglect. Application for relief must be accompanied by a copy of the answer otherwise the application shall not be granted. Defendant failed to file an Answer as required. Page 14 of his motion includes a "Proposed Answer Exhibit A;" however, **no Answer is included.**

Even if an Answer had been included, the Court is unpersuaded that Defendant is entitled to relief. Code of Civil Procedure § 415.20(b) provides a copy of the summons and complaint may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address, at least 18 years of age, who shall be informed of the contents thereof. The serving party must thereafter mail a copy of the summons and complaint by first-class mail, postage prepaid, to the person to be served at the place where the documents were left.

California courts have consistently held that two or three attempts at personal service at a proper place ordinarily satisfy the requirement of reasonable diligence and allow substituted service to be made. *See Espindola v. Nunez* (1988) 199 Cal.App.3d 1389, *Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App.4th 1387. Here, the process server made three attempts of personal service at Defendant's residence. On the third attempt, substituted service was made on Sandra Ohanele. The Summons and Complaint were thereafter mailed to Defendant's residence. The Court finds such substituted service appropriate.

Where the record supports proper substituted service, a defendant's declaration claiming lack of knowledge is insufficient to overcome the proof of service and declaration of diligence. *See First American Title Ins. Co. v. Banerjee* (2022) 87 Cal.App.5th 37. Moreover, per Defendant's declaration, he concedes he first learned about the lawsuit on or around December 15, 2025.

Defendant's request to set aside the default judgment is denied.

TENTATIVE RULING #8:

DEFENDANT'S REQUEST TO SET ASIDE THE DEFAULT JUDGMENT IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.